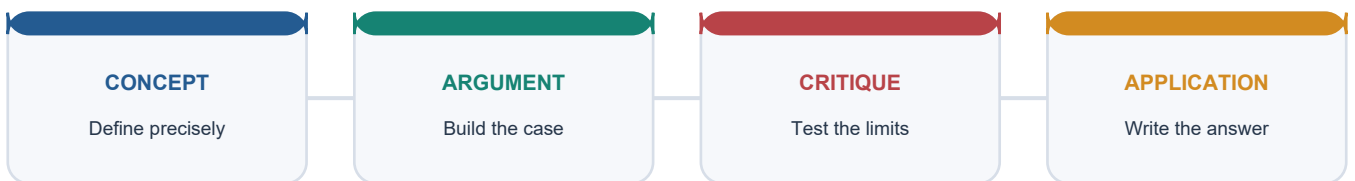


SOLVED PRACTICE WORKBOOK

NHRC and SHRC - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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NHRC and SHRC - Solved Practice Workbook

Subject: Polity | **Control date:** 8 September 2026

Locked discipline: exactly 32 original MCQs before PYQs; ABCD repeated eight times; 128 substantive unique option-specific explanations; 32 unique question-specific examiner traps; verified-PYQ wording and official-key discipline; exactly six original Mains models.

Exactly **32 original MCQs** appear before PYQs. Correct-option sequence: ABCD repeated eight times. Every question has four substantive option-specific explanations and one unique question-specific examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1. Legal identity

Which description is legally correct?

A. NHRC is a statutory commission under the Protection of Human Rights Act, 1993. B. NHRC is a constitutional commission under Article 338. C. NHRC is a criminal court constituted under the Code of Criminal Procedure. D. NHRC is an informal body created only by executive resolution.

Answer: A.

Option-specific explanations:

- **A:** Section 3 requires the Central Government to constitute NHRC under the PHRA.
- **B:** Article 338 creates the National Commission for Scheduled Castes, not NHRC.
- **C:** Civil-court inquiry powers do not make NHRC a criminal court.
- **D:** The PHRA, not a bare Cabinet resolution, is the creating law.

Examiner trap 1: The adjective 'national' does not identify the legal source.

MCQ 2. Statutory definition

Section 2(1)(d) defines human rights by linking life, liberty, equality and dignity to rights that are

A. recognised by any civil-society organisation. B. constitutionally guaranteed or embodied in the defined International Covenants and enforceable by courts in India. C. found in every treaty signed by India, whether enforceable or not. D. available only to citizens under Part III.

Answer: B.

Option-specific explanations:

- **A:** NGO recognition cannot enlarge a statutory definition.
- **B:** This option preserves both legal sources and the enforceability requirement.
- **C:** Treaty signature alone does not satisfy the statutory notification and enforceability gates.
- **D:** The definition concerns the individual and is not confined to citizen-only rights.

Examiner trap 2: Omitting 'enforceable by courts in India' makes the definition overbroad.

MCQ 3. International Covenants

Which instruments are expressly named in section 2(1)(f)?

A. Only the Universal Declaration of Human Rights B. Every International Labour Organization convention C. The ICCPR and the ICESCR, plus another UN General Assembly covenant or convention if centrally notified D. Only treaties incorporated by a constitutional amendment

Answer: C.

Option-specific explanations:

- **A:** The UDHR is historically important but is not the pair expressly named in section 2(1)(f).
- **B:** ILO instruments are not automatically included as a class.

- **C:** The Act names both 1966 Covenants and creates a notification route for another UNGA instrument.
- **D:** A constitutional amendment is not the statutory notification mechanism.

Examiner trap 3: Separate an instrument's moral importance from its inclusion in the Act's definition.

MCQ 4. Deemed members

The seven deemed members of NHRC participate by virtue of section 3(3) for

A. only section 12(a) complaint inquiries. B. the presidential appointment committee. C. all NHRC functions without any statutory boundary. D. the functions in section 12(b) to (j), excluding section 12(a) by that deemed status.

Answer: D.

Option-specific explanations:

- **A:** Section 12(a) is the function excluded from the deemed-member formula.
- **B:** The selection committee is separately specified in section 4.
- **C:** Section 3(3) expressly imposes a functional boundary.
- **D:** This reproduces the current statutory range accurately.

Examiner trap 4: The correct range begins with clause (b), not clause (c).

MCQ 5. NHRC chair eligibility

Who satisfies the current statutory qualification for NHRC Chairperson?

A. A person who has been Chief Justice of India or a Judge of the Supreme Court B. Any former Chief Justice of a High Court C. Only a serving Chief Justice of India D. Any human-rights expert with ten years' experience

Answer: A.

Option-specific explanations:

- **A:** The 2019 Amendment widened the former CJI-only formulation to include a person who has been an SC Judge.
- **B:** High Court Chief Justice experience qualifies the separate ordinary judicial-member category, not the Chair by itself.
- **C:** The statutory phrase is 'has been', not 'must be serving'.
- **D:** Expertise alone belongs to the expert-member route, not Chairperson eligibility.

Examiner trap 5: Do not confuse the Chairperson route with the expert-member route.

MCQ 6. Selection committee

Which office is not a member of the section 4 selection committee?

A. Speaker of the Lok Sabha B. Chief Justice of India C. Union Home Minister D. Deputy Chairman of the Rajya Sabha

Answer: B.

Option-specific explanations:

- **A:** The Lok Sabha Speaker is one of the six members.
- **B:** The CJI has a consultation role for specified sitting-judge appointments but is not on the committee.
- **C:** The Minister in charge of Home Affairs is a member.
- **D:** The Rajya Sabha Deputy Chairman is a member.

Examiner trap 6: Consultation with an office-holder does not make that office-holder a committee member.

MCQ 7. NHRC tenure

Which statement reflects section 6 after the 2019 Amendment?

A. Every member has a single non-renewable five-year term. B. Members serve during presidential pleasure without an age limit. C. The term is three years; reappointment is allowed, subject to the age ceiling of seventy. D. The term is six years or age sixty-five, whichever is earlier.

Answer: C.

Option-specific explanations:

- **A:** Five years is the pre-2019 rule and non-renewability is incorrect.
- **B:** Removal is governed by section 5, not unrestricted pleasure.
- **C:** This states the current duration, reappointment rule and ceiling.
- **D:** Neither six years nor sixty-five is the PHRA formula.

Examiner trap 7: The amendment shortened tenure but did not abolish reappointment.

MCQ 8. Direct removal ground

Which circumstance is a direct statutory ground for presidential removal without first proving misbehaviour through the Supreme Court inquiry route?

A. A dissenting recommendation B. Failure to attend one meeting C. Criticism by Parliament D. Being adjudged insolvent

Answer: D.

Option-specific explanations:

- **A:** Disagreement with a recommendation is not a removal ground.
- **B:** One absence is not listed.
- **C:** Political criticism is not a statutory ground.
- **D:** Insolvency appears in section 5(3)'s direct-removal list.

Examiner trap 8: Keep the proved-misbehaviour track separate from the listed objective grounds.

MCQ 9. Section 12(a)

NHRC may inquire under section 12(a) into

A. a violation or abetment, or public-servant negligence in prevention, on the authorised entry routes. B. every breach of a private contract without public-authority connection. C. only matters referred by Parliament. D. only violations already proved by a criminal court.

Answer: A.

Option-specific explanations:

- **A:** This captures the subject and the public-servant nexus.
- **B:** The PHRA is not a general private-contract forum.
- **C:** Parliamentary reference is not the sole entry route.
- **D:** Inquiry precedes, and does not require, a criminal conviction.

Examiner trap 9: The public-servant wording attaches expressly to negligence in prevention.

MCQ 10. Court intervention

Section 12(b) permits NHRC to intervene in a pending human-rights proceeding

- A. whenever the Commission wishes, despite the court. B. with the approval of that court. C. only after final judgment.
D. only if the Union Home Ministry consents.

Answer: B.

Option-specific explanations:

- **A:** The court retains control of its proceeding.
- **B:** Court approval is the express statutory condition.
- **C:** Intervention concerns a pending proceeding, not only a concluded one.
- **D:** The clause does not make Home Ministry consent the condition.

Examiner trap 10: Court-directed inquiry under section 12(a) and intervention requiring court approval under 12(b) are distinct.

MCQ 11. Institution visits

The section 12(c) visit function is best described as

- A. a power to take permanent control of prisons. B. a power to sentence prison officials. C. a visit to specified State-controlled institutions to study inmate living conditions and recommend. D. a power limited to police stations named by Parliament.

Answer: C.

Option-specific explanations:

- **A:** Management remains with the competent government authority.
- **B:** Criminal sentencing belongs to courts.
- **C:** This states the purpose and recommendatory output.
- **D:** The clause is broader and is not based on parliamentary naming.

Examiner trap 11: Visit, study and recommend are not manage, prosecute and punish.

MCQ 12. Civil-court powers

Which consequence does section 13 not create?

- A. Power to summon and examine witnesses on oath B. Power to require discovery and production of documents C. Power to requisition public records D. A general power to pass executable compensation decrees

Answer: D.

Option-specific explanations:

- **A:** Summoning is expressly listed.
- **B:** Document discovery and production are expressly listed.
- **C:** Public-record requisition is expressly listed.
- **D:** Compensation is recommended under section 18; no general decree power follows from section 13.

Examiner trap 12: Evidence power and remedy power arise from different sections.

MCQ 13. Limited deemed-court status

The safest statement about NHRC's deemed-court status is

A. It is purpose-specific for listed Penal Code and criminal-procedure consequences. B. It makes every NHRC recommendation a civil decree. C. It gives NHRC the Supreme Court's writ jurisdiction. D. It authorises NHRC to punish every criticism as contempt.

Answer: A.

Option-specific explanations:

- **A:** Sections 13(4)-(5) define limited consequences tied to proceedings and specified offences.
- **B:** Section 18 recommendations remain non-self-executing.
- **C:** Writ jurisdiction remains with constitutional courts.
- **D:** The Act does not confer a general contempt jurisdiction.

Examiner trap 13: The phrase 'deemed to be a civil court' must always be followed by its statutory purpose.

MCQ 14. Investigation agency

Under section 14, NHRC may use a Central or State government officer or agency

A. without informing any government. B. with the concurrence of the concerned government and under Commission direction and control. C. only after a criminal court frames charges. D. only for promotional research.

Answer: B.

Option-specific explanations:

- **A:** The statute requires concurrence.
- **B:** This states both the concurrence gate and operational relationship.
- **C:** Commission investigation is not contingent on framed criminal charges.
- **D:** Section 14 concerns inquiry-related investigation.

Examiner trap 14: Concurrence is a legal condition; Commission verification is a separate safeguard.

MCQ 15. Section 17

If information called for under section 17 is not received within the stipulated time, NHRC may

A. automatically convict the named official. B. award final damages as a decree. C. proceed to inquire into the complaint on its own. D. refer every case to Parliament.

Answer: C.

Option-specific explanations:

- **A:** Conviction remains judicial.
- **B:** Section 18 uses recommendatory language.
- **C:** The proviso expressly allows the Commission to proceed.
- **D:** Parliamentary laying concerns reports, not an automatic complaint route.

Examiner trap 15: A report-first procedure does not give the government a veto through silence.

MCQ 16. Section 18 output

Which is the correct legal formulation?

A. NHRC itself imprisons the responsible public servant. B. NHRC executes compensation as an ordinary civil decree. C. NHRC finally determines criminal guilt. D. NHRC may recommend compensation, prosecution, further action or interim relief and may approach a constitutional court.

Answer: D.

Option-specific explanations:

- **A:** The Commission has no sentencing power.

- **B:** The Act says recommend payment, not execute a decree.
- **C:** Criminal guilt is for the competent court.
- **D:** This accurately combines the section 18 routes.

Examiner trap 16: In answers, retain the verbs 'recommend' and 'approach'.

MCQ 17. Ordinary response period

The ordinary section 18 period for government or authority comments is

A. one month, or further time allowed by the Commission. B. three months without extension. C. one year. D. seven days.

Answer: A.

Option-specific explanations:

- **A:** Section 18(e) supplies this period.
- **B:** Three months belongs to the armed-forces route.
- **C:** One year is the section 36(2) inquiry bar.
- **D:** Seven days is not the statutory period here.

Examiner trap 17: Match each period to its provision: one month, three months, one year.

MCQ 18. Armed forces definition

For the PHRA, 'armed forces' includes

A. all State police personnel by default. B. naval, military and air forces and other armed forces of the Union. C. only the Army. D. every private security contractor.

Answer: B.

Option-specific explanations:

- **A:** State police are not automatically within section 2(1)(a).
- **B:** This follows the statutory definition.
- **C:** The definition is not confined to the Army.
- **D:** Private contractors are not included merely by their work.

Examiner trap 18: Do not use 'armed forces' as a loose synonym for every uniformed service.

MCQ 19. Section 19 procedure

After receiving the Central Government's report in an armed-forces complaint, NHRC may

A. conduct an ordinary direct inquiry regardless of section 19. B. sentence the personnel concerned. C. not proceed further or make recommendations to the Central Government. D. transfer the criminal trial to itself.

Answer: C.

Option-specific explanations:

- **A:** Section 19 displaces the ordinary track.
- **B:** Sentencing belongs to a court.
- **C:** These are the two statutory choices.
- **D:** NHRC is not a trial court.

Examiner trap 19: The special route narrows procedure; it does not erase rights law.

MCQ 20. Armed-forces follow-up

The Central Government ordinarily informs NHRC of action on a section 19 recommendation within

A. one month. B. six months. C. one year. D. three months, or further time allowed.

Answer: D.

Option-specific explanations:

- **A:** One month is the ordinary section 18 period.
- **B:** Six months is not the section 19 formula.
- **C:** One year concerns jurisdiction.
- **D:** Section 19(2) supplies three months plus permitted extension.

Examiner trap 20: The special procedure has its own longer response clock.

MCQ 21. SHRC subject scope

An SHRC may inquire into violations relating to

A. entries in the State List and Concurrent List, subject to the already-inquired bar. B. only the Union List. C. foreign affairs and defence exclusively. D. every matter occurring geographically in the State.

Answer: A.

Option-specific explanations:

- **A:** Section 21(5) ties jurisdiction to Lists II and III and adds the duplication proviso.
- **B:** Union List-only jurisdiction is incorrect.
- **C:** These are predominantly Union fields.
- **D:** Location alone does not answer the subject-matter test.

Examiner trap 21: Use the Seventh Schedule, not a simple territory test.

MCQ 22. SHRC appointment and removal

Which pair is correct?

A. President appoints; Governor removes B. Governor appoints; President removes C. Chief Justice appoints; Chief Minister removes D. State Legislature appoints and removes

Answer: B.

Option-specific explanations:

- **A:** The President is not the SHRC appointing authority.
- **B:** Sections 22 and 23 create this asymmetry.
- **C:** Judicial consultation does not replace the statutory authorities.
- **D:** The legislature is not given these powers.

Examiner trap 22: Resignation to the Governor must not be confused with removal by the President.

MCQ 23. SHRC chair eligibility

After the 2019 Amendment, an SHRC Chairperson must be a person who has been

A. only a District Judge. B. only Chief Justice of India. C. Chief Justice or Judge of a High Court. D. a civil servant of Chief Secretary rank.

Answer: C.

Option-specific explanations:

- **A:** District Judge experience belongs to the judicial-member route.
- **B:** CJI experience is not the required State-chair formula.
- **C:** This is the widened current qualification.

- **D:** Civil-service rank is not the qualification.

Examiner trap 23: The 2019 change widened the chair route beyond former High Court Chief Justices.

MCQ 24. SHRC adapted functions

When section 12 applies to an SHRC through section 29, which function is omitted?

A. Court intervention with approval B. Institution visits C. Research D. Study of treaties and other international instruments under section 12(f)

Answer: D.

Option-specific explanations:

- **A:** Section 12(b) remains applicable with the State-Commission adaptation.
- **B:** Section 12(c) remains applicable.
- **C:** Section 12(g) remains applicable.
- **D:** Section 29(c) expressly omits clause (f).

Examiner trap 24: The omitted clause is treaty study, not complaint inquiry.

MCQ 25. Human Rights Court

A Human Rights Court under section 30 is

A. a Court of Session that a State may specify for a district with High Court Chief Justice concurrence. B. an internal bench of NHRC. C. a court automatically created in every district by the Act without notification. D. the Supreme Court exercising Article 32.

Answer: A.

Option-specific explanations:

- **A:** This follows the enabling notification design.
- **B:** NHRC does not contain a criminal trial bench.
- **C:** The word 'may' and notification requirement defeat automatic creation.
- **D:** Article 32 is a distinct constitutional jurisdiction.

Examiner trap 25: Designation of a Sessions Court does not create a new tier of judiciary.

MCQ 26. Special Public Prosecutor

An advocate specially appointed under section 31 must have practised for at least

A. five years. B. seven years. C. ten years. D. twelve years.

Answer: B.

Option-specific explanations:

- **A:** Five years is below the statutory minimum.
- **B:** Seven years is the exact threshold.
- **C:** Ten years is not required.
- **D:** Twelve years is not required.

Examiner trap 26: The State may instead specify a Public Prosecutor.

MCQ 27. One-year bar

Which case treats section 36(2) as a jurisdictional bar and rejects a generic continuing-wrong theory for completed detention?

A. Kesavananda Bharati v State of Kerala B. S.R. Bommai v Union of India C. N.C. Dhoundial v Union of India D. Indra Sawhney v Union of India

Answer: C.

Option-specific explanations:

- **A:** This case concerns constitutional amendment limits.
- **B:** This case concerns federalism and Article 356.
- **C:** The 2003 judgment directly controls the PHRA limitation point.
- **D:** This case concerns reservations.

Examiner trap 27: Continuing consequences do not necessarily mean a continuing violative act.

MCQ 28. Paramjit Kaur exception

Why did section 36(2) not control NHRC's role in Paramjit Kaur?

A. The Act had been repealed. B. The complaint concerned only a private contract. C. NHRC had enacted a limitation waiver regulation. D. NHRC was acting as the Supreme Court's expert body under Article 32 directions, not exercising ordinary statutory jurisdiction.

Answer: D.

Option-specific explanations:

- **A:** The PHRA remained operative.
- **B:** That was not the reason.
- **C:** A regulation cannot simply repeal the statutory bar.
- **D:** This is the precise exception reiterated in Dhoundial.

Examiner trap 28: A Supreme Court reference does not create a general NHRC power to ignore the Act.

MCQ 29. Section 36(1)

Section 36(1) prevents NHRC from inquiring into a matter that is

A. pending before an SHRC or another commission duly constituted by law. B. mentioned in a newspaper. C. older than six months. D. critical of the Union Government.

Answer: A.

Option-specific explanations:

- **A:** This is the anti-duplication rule.
- **B:** Media coverage does not create the bar.
- **C:** The separate time bar is one year under subsection (2).
- **D:** Political sensitivity is not a jurisdictional criterion.

Examiner trap 29: Subsection (1) is overlap; subsection (2) is time.

MCQ 30. Section 37

Who may constitute a special investigation team under section 37?

A. Only the Chief Justice of India B. The Government, when it considers such a team necessary C. NHRC acting as a criminal court D. GANHRI

Answer: B.

Option-specific explanations:

- **A:** The section does not reserve the power to the CJI.
- **B:** The statutory actor is the Government.
- **C:** NHRC is not a criminal court and section 37 is a separate route.
- **D:** GANHRI is an international accreditation alliance, not an Indian investigative authority.

Examiner trap 30: Do not merge section 37 SITs with section 14 agency utilisation.

MCQ 31. Specialised commissions

Which statement is correct about merging NCSC, NCST and NCBC into a statutory NHRC?

A. It can be done by an NHRC administrative order. B. Section 3(3) has already dissolved them. C. Their constitutional status under Articles 338, 338A and 338B means ordinary PHRA amendment cannot simply absorb their constitutional mandates. D. The Governor can merge them through a State notification.

Answer: C.

Option-specific explanations:

- **A:** NHRC has no such constituent power.
- **B:** Deemed membership is coordination, not dissolution.
- **C:** This states the constitutional barrier accurately.
- **D:** A State notification cannot alter national constitutional commissions.

Examiner trap 31: An umbrella argument must separate constitutional and statutory bodies.

MCQ 32. EEVFAM

The most defensible use of EEVFAM (2016) in this topic is that it

A. made every NHRC recommendation binding. B. abolished section 19. C. authorised NHRC to convict armed-forces personnel. D. required credible investigation of alleged extra-judicial executions and rejected blanket justification for excessive force, while preserving distinct institutional roles.

Answer: D.

Option-specific explanations:

- **A:** The judgment did not convert recommendations into decrees.
- **B:** Section 19 remained in force.
- **C:** Criminal adjudication did not move to NHRC.
- **D:** This is a bounded rights-accountability proposition.

Examiner trap 32: Use EEVFAM for investigation and accountability, not fictional NHRC powers.

PYQS AND ANSWER PRACTICE

Verified-PYQ control

- The two direct owner-routed questions below are reproduced from audited local official-paper records.
- UPSC publishes questions, not official Mains model answers; every solution below is an examiner-oriented model, never an official key.
- No direct objective NHRC/SHRC PYQ with a locally controlled official key is claimed. The related 2023 constitutional-body classification item is not reconstructed as a direct topic PYQ.

Verified Mains PYQ 1 - UPSC GS-II 2018, Q16 - 15 marks, 250 words

Question: Multiplicity of various commissions for the vulnerable sections of the society leads to problems of overlapping jurisdiction and duplication of functions. Is it better to merge all commissions into an umbrella Human Rights Commission? Argue your case.

Directive decode: Take a position; distinguish constitutional and statutory bodies; weigh coordination gains against loss of specialised mandates; propose a legally feasible architecture.

Model answer:

Multiplicity can produce forum confusion, repeated fact-finding and weak follow-up, but merging every vulnerable-section commission into a statutory Human Rights Commission would be constitutionally difficult and institutionally unwise.

Case for coordination: NHRC, NCW, NCM, NCPDR and disability institutions often encounter intersecting dignity and discrimination claims. PHRA section 3(3) already creates limited integration by making seven specialised office-holders deemed NHRC members for section 12(b)-(j). Common intake standards, lawful information exchange and reasoned referral can reduce duplication.

Case against merger: NCSC, NCST and NCBC are constitutional commissions under Articles 338, 338A and 338B. Their constitutional reporting, consultation and group-specific safeguards cannot be absorbed into a statutory NHRC through ordinary administrative action or a simple PHRA amendment. Specialised statutory bodies also hold expertise in gender, child, minority and disability law that a mega-body may dilute.

Middle path: retain mandates; use section 36(1), section 21(5) and section 13 transfer powers as an anti-overlap spine; create interoperable case tracking, joint thematic studies and written referral reasons.

Thus, India needs coordinated specialisation under stronger rights standards, not institutional erasure.

Verified Mains PYQ 2 - UPSC GS-II 2021, Q12 - 15 marks, 250 words

Question: Though the Human Rights Commissions have contributed immensely to the protection of human rights in India, yet they have failed to assert themselves against the mighty and powerful. Analyzing their structural and practical limitations, suggest remedial measures.

Directive decode: Acknowledge contribution; separate statutory constraints from operational weaknesses; pair each diagnosis with a proportionate remedy.

Model answer:

Human Rights Commissions create accessible records of abuse, but their statutory design and operational dependence limit remedies against powerful State actors.

Contribution: Section 12 enables suo motu inquiry, court intervention with approval, institutional visits and safeguard review; section 13 supplies strong evidence powers. Public reports, interim-relief recommendations and court approaches can expose violations and trigger action.

Structural limits: Section 18 recommendations are not self-executing; government must respond but need not automatically accept them. Section 36(2)'s one-year bar was held jurisdictional in *N.C. Dhoundial*. Section 19 replaces ordinary inquiry into armed-forces complaints with a Central-report route. SHRCs face List II/List III and duplication limits.

Practical limits: government-linked police investigators may face conflicts; vacancies, uneven State capacity, delayed reports, weak victim support and poor prosecution referral reduce impact.

Remedies: establish an independent multidisciplinary investigation cadre; publish selection criteria and vacancy calendars; require time-bound recommendation-wise acceptance or reasoned rejection with judicial escalation; legislate calibrated relief from the one-year bar for grave or concealed violations; permit safeguarded independent fact-finding under section 19; strengthen Human Rights Court and prosecutor referral.

The goal is not to make NHRC a parallel criminal court, but to make its evidence produce accountable follow-through.

ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS

Original Mains 1 - 10 marks, 150 words

Question: Distinguish civil-court inquiry powers from binding adjudicatory power in the PHRA.

Model answer:

NHRC possesses strong evidence-gathering powers but not general adjudicatory authority. Section 13 permits summons, examination on oath, document production, affidavit evidence, public-record requisition and commissions. It also creates limited deemed-court and judicial-proceeding consequences for specified offences and procedural provisions.

These powers improve the reliability of findings. For example, compelled documents and sworn testimony can establish whether a public servant violated rights or negligently failed to prevent a violation. Yet section 18 uses different verbs: NHRC may recommend compensation, prosecution, further action or interim relief, and may approach the Supreme Court or High Court.

Therefore, a strong evidentiary record does not become an executable decree or criminal conviction. Binding consequences arise when government accepts and implements recommendations, prosecutors invoke substantive law, or courts issue orders. The accurate description is a powerful statutory inquiry body with recommendatory remedies, not a civil or criminal court.

Original Mains 2 - 10 marks, 150 words

Question: Explain the federal logic of SHRC jurisdiction and removal.

Model answer:

SHRC design combines decentralised access with centrally protected tenure. Under section 21(5), an SHRC may inquire only into matters relatable to State List and Concurrent List entries. It must abstain where NHRC or another duly constituted commission is already inquiring into that matter. This aligns State-level rights scrutiny with the Seventh Schedule and limits duplicate proceedings.

Appointment is local: the Governor appoints after recommendation by a committee led by the Chief Minister and including legislative and opposition offices. Removal is different. Under section 23, the President removes; proved misbehaviour or incapacity requires a Supreme Court inquiry.

The asymmetry can reduce immediate State-executive pressure on a commission investigating State authorities. However, State provision of staff, investigators and finance still creates operational dependence. Thus, SHRC federalism is neither complete State autonomy nor Union control: it is State access, subject-matter limits, central removal safeguards and shared statutory procedure.

Original Mains 3 - 15 marks, 250 words

Question: Examine whether section 36(2)'s one-year bar should be retained.

Model answer:

Section 36(2) bars NHRC and SHRC inquiry after one year from the alleged violative act. It protects timely evidence and prevents an open-ended statutory docket, but its inflexibility can exclude precisely those victims least able to complain quickly.

Case for retention: memories fade, records disappear and officials change; a clear threshold promotes administrability. In *N.C. Dhoundial v Union of India* (2003), the Supreme Court treated the bar as jurisdictional and

rejected the proposition that continuing effects automatically convert a completed detention into a continuing wrong.

Case for reform: victims of custody, trafficking, displacement, institutionalisation or intimidation may discover facts late or fear retaliation. Grave violations may involve concealment by the very authority controlling evidence. A rigid year can privilege official delay.

Calibrated solution: Parliament should retain a default period but permit reasoned condonation for grave violations, concealment, continuing acts or demonstrated incapacity, with notice and recorded reasons. The amendment should define factors, cap discretionary abuse and preserve other commissions' and courts' jurisdiction. Better digital preservation and referral should accompany reform.

Until amendment, the Commission cannot invent a general exception. A fair answer therefore respects *Dhoundial* as current law while arguing for a narrowly structured legislative safety valve.

Original Mains 4 - 15 marks, 250 words

Question: Discuss how Human Rights Courts can strengthen, but cannot replace, Human Rights Commissions.

Model answer:

The PHRA separates inquiry from adjudication. NHRC and SHRC receive complaints, gather evidence, inspect institutions, review safeguards and recommend relief or prosecution. Sections 30 and 31 permit a State, with the High Court Chief Justice's concurrence, to specify a Court of Session as a Human Rights Court and to designate a Public Prosecutor or an advocate with at least seven years' practice.

Human Rights Courts can strengthen the system by giving serious cases a visible trial route, trained prosecution and potentially quicker scheduling. Commission findings may identify evidence, institutional patterns and victims needing protection. Section 37 special investigation teams can support investigation and prosecution where government considers them necessary.

However, a designated Sessions Court does not create a new substantive offence, replace lawful police investigation or make a Commission recommendation conclusive proof. Nor can courts perform NHRC's promotional work, jail visits, treaty study, literacy, thematic review or public reporting. Uneven notifications, unclear referrals and ordinary docket pressure may also make designation symbolic.

Reform should map offences under existing penal and special laws, create Commission-police-prosecutor referral protocols, train prosecutors, support witnesses and publish case-flow data. The institutions are complementary: Commissions investigate and recommend; investigators build criminal cases; prosecutors present them; courts decide guilt and binding relief.

Original Mains 5 - 20 marks, 250 words

Question: Evaluate NHRC independence against the Paris Principles and propose reforms.

Model answer:

NHRC has statutory independence safeguards, yet its institutional design does not fully eliminate executive dependence. The Paris Principles, endorsed by UN General Assembly Resolution 48/134 in 1993, emphasise a broad legal mandate, pluralism, stable tenure, adequate resources, independent methods and cooperation with civil society.

Safeguards: the PHRA defines a broad protection-and-promotion mandate; appointment is by presidential warrant after a six-member committee recommendation; proved misbehaviour or incapacity requires a Supreme Court inquiry; section 13 gives substantial evidence powers; reports reach legislatures.

Gaps: political-executive actors dominate the selection committee; statutory pluralism is limited mainly to three experts and one-woman minimum; three-year renewable tenure may affect incentives; sections 11 and 14 rely on government-provided police and agencies; funding and vacancies affect capacity; section 18 follow-up remains recommendatory.

GANHRI's March 2025 accreditation report recommended alteration to B status and identified independence and pluralism concerns. India challenged that recommendation. As of 8 September 2026, GANHRI's public material continued to list India at A while an alteration review was scheduled for November 2026; no final downgrade should be asserted.

Reform should use open nominations, published criteria, diverse expertise, fixed appointment calendars, an independent multidisciplinary investigation cadre, protected resources, recommendation-wise reasoned responses and parliamentary follow-up. Independence means credible distance plus accountability, not absence of review.

Original Mains 6 - 20 marks, 250 words

Question: Design a coordinated human-rights accountability architecture without creating a super-commission.

Model answer:

India's rights architecture should coordinate specialised institutions while preserving their legal mandates. NHRC and SHRC are statutory inquiry and promotion bodies. NCSC, NCST and NCBC are constitutional commissions; NCM, NCW, NCPCR and disability institutions have specialised statutory fields. Courts issue binding orders, police investigate offences, prosecutors conduct cases and legislatures scrutinise reports.

Intake: a common portal should record the alleged right, public authority, territory, date, vulnerability and parallel proceeding. It should preserve limitation dates rather than make victims restart.

Referral: NHRC should use section 13(6) transfers only where the SHRC is competent. Section 36(1) and section 21(5) should prevent duplicate inquiry, with written reasons identifying the lead body.

Joint learning: commissions may share anonymised trend data, conduct lawful thematic studies and issue coordinated recommendations while each retains complaint authority. Deemed membership under section 3(3) supports section 12(b)-(j) cooperation but does not merge section 12(a) inquiries.

Enforcement chain: Commission findings should move through a tracked matrix to departments, independent investigators, prosecutors, Human Rights Courts and constitutional courts as appropriate. Governments should accept or reject each recommendation with reasons.

Safeguards: data protection, victim consent, witness support, appeal or review routes and legislative oversight are essential.

The objective is one navigable system, not one legally overgrown institution.